

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Gary L. Paden
Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard, Room 303
Visalia, CA 93291

Re: Reyes, Diego Negrete
CDC No.: AI0580
Case No.: VCF225420
Date of Sentence: 6/30/2011

Dear Honorable Gary L. Paden:

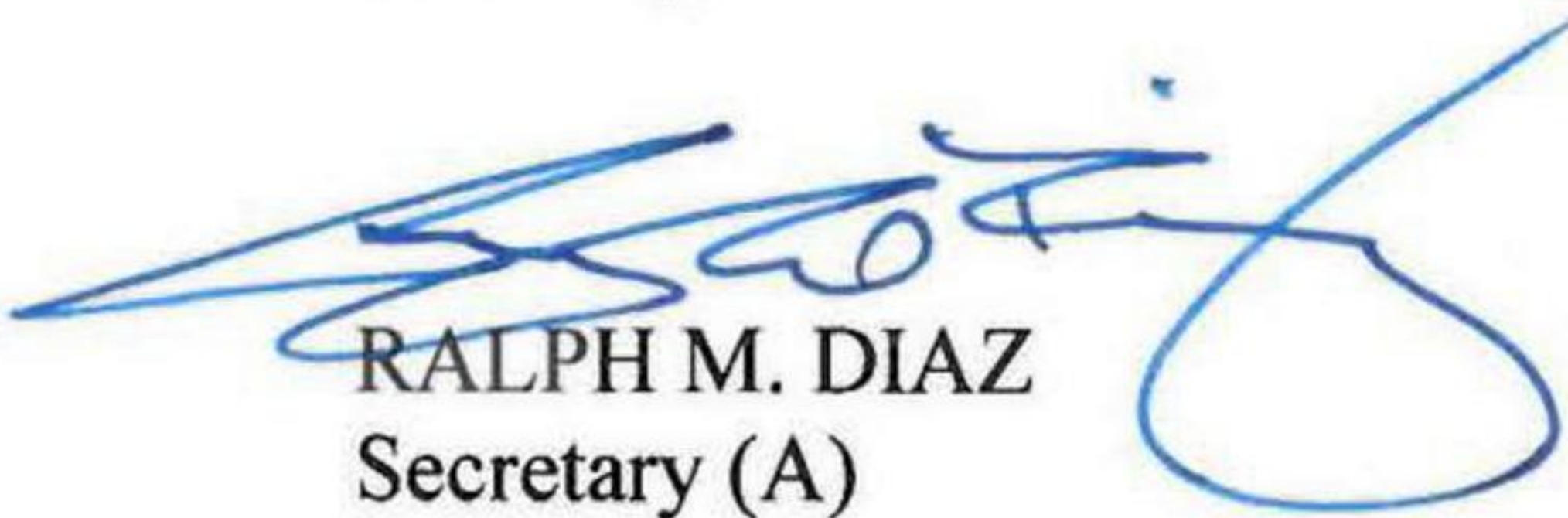
The purpose of this letter is to provide the court with authority to resentence Diego Negrete Reyes pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Reyes was sentenced in 2011, and was convicted of section 245, subdivision (A)(2), Assault with a Firearm. The trial court sentenced inmate Reyes on 6/30/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Reyes's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Reyes's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

AI0580

BW
AD 5E4
SOUTH

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Tulare		FILED TULARE COUNTY SUPERIOR COURT VISALIA DIVISION JUL 06 2011 LARAYNE CLEEK, CLERK BY: <i>Lydia Arredondo</i>	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Diego Negrete Reyes		DOB: 01-04-87	CASE NUMBER VCF225420
AKA: CII NO.: A23383156 BOOKING NO.: 09-20017		☐ NOT PRESENT	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING 6-30-11	DEPT. NO. 11	JUDGE Gary L. Paden	
CLERK Lydia Arredondo	REPORTER Nancy Cargill #3577	PROBATION NO. OR PROBATION OFFICER 571623 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE Greg Peinado		COUNSEL FOR DEFENDANT Albert Gordon ☒ APPTD.	

ENTERED
INTO OBIS

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L.M.U)	TIME IMPOSED
1	PC	245(a)(2)	Assault with a Firearm	2009	3-9-11	JURY COURT FEA X	M	03 - 00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1	PC186.22(b)(1)(c)	10 yrs	PC12022.7(a)	3 yrs			13 00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$ 7,000 per PC 1202.4(b) forthwith per PC 2085.5; \$ 7,000 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 80 per PC 1465.8. ☒ Criminal Conviction Assessment of \$ 60 per GC 70373.

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin Hisp

8. Other orders (specify): Defendant shall register as an active participant in a Criminal Street Gang purs to PC186.30.

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM:	16	00
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10. ☐ This sentence is to run concurrent with (specify): _____

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

12. DATE SENTENCE PRONOUNCED 6-30-11	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 817	ACTUAL LOCAL TIME 695	LOCAL CONDUCT ☐ 4019 ☒ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the _____ of the California Department of Corrections and Rehabilitation.
☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of judgment made in this action.

DEPUTY'S SIGNATURE Lydia Arredondo	7-6-11
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for detainers and sentences. Attachments may be used but must be referred to in this document.